

HOUSE No. 5437

The Commonwealth of Massachusetts

PRESENTED BY:

Homar Gómez and Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure appropriate and timely emergency medical response.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Homar Gómez</i>	<i>2nd Hampshire</i>	<i>12/4/2025</i>

HOUSE No. 5437

By Representative Gómez of Easthampton and Senator Comerford, a joint petition (subject to Joint Rule 12) of Homar Gómez relative to reports of crimes to law enforcement officials. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure appropriate and timely emergency medical response.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

SECTION 1. Section 40 of chapter 268 of the General Laws, as appearing in the 2024 Official Edition, is hereby amended by inserting after the word “robbery,” in line 2, the following words:- , or has sustained serious bodily injury as a result of the act of another person or the omission of another person under a duty to act,.

SECTION 2. Said section 40 of said chapter 268, as so appearing, is hereby further amended by inserting after the word "crime," in line 3, the following words:- or injury.

SECTION 3. Said section 40 of said chapter 268, as so appearing, is hereby further amended by inserting after the word "official," in line 5, the following words:- , which may include, but not be limited to, dialing the emergency telephone access number 911, or its local equivalent,.

SECTION 4. Said section 40 of said chapter 268, as so appearing, is hereby further amended by adding the following paragraph:-

13 For the purposes of this section "serious bodily injury" shall mean bodily injury which
14 creates a substantial and imminent risk of death, permanent disfigurement or loss or impairment
15 of a bodily function, limb or organ.